

23STCV00688 23STCV00688

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Case Number: 23STCV00688 Hearing Date: August 17, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August

17, 2026

Case Name: Whiting v. State of

California, et al.

Case

No.: 23STCV00688

Matter: Motion to Quash

Moving

Party: Plaintiff Lynette Whiting

Responding Party: Whiting Defendants California

Department of Corrections and Rehabilitation and California Correctional Health

Care Services

Tentative Ruling: Plaintiff

Lynette Whiting's motion to quash is denied.

Plaintiff

Lynette Whiting ("Plaintiff") filed this action against Defendants State of California, a corporation, California State Prison-Los Angeles County, a

corporation, California, a corporation, California Correctional Health Care Services doing business as CCHS, a corporation, California Department of Corrections and Rehabilitation ("Defendant"), Officer Lazar, an individual, and Does 1 through 100. Plaintiff's filed a First Amended Complaint alleged causes of action for: (1) violation of FEHA—discrimination based on gender, disability, and race; (2) violation of FEHA—harassment based on gender, race, and disability; (3) violation of FEHA—retaliation; (4) violation of FEHA— failure to engage in the interactive process; (5) violation of FEHA—failure to accommodate; (6) violation of FEHA— failure to prevent discrimination and harassment; (7) a violation of Labor section 1102.5; and (8) violation of Labor Code section 6310. The remaining causes of action against CDCR are the first, third, fourth, fifth, and sixth.

Plaintiff

moves to quash categories three and four from the deposition subpoena served on non-party Dimondale Adolescent Care Facility. Defendant opposes.

Legal Standard

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Analysis

Plaintiff

moves to quash categories three and four from the deposition subpoena served on non-party Dimondale Adolescent Care Facility because the information sought is irrelevant, inadmissible, and an invasion of privacy.

The

deposition subpoena lists the four categories as matters to be addressed in the deposition:

(1) All information relating to the hiring of Lynette Whiting around June 2022 with Fleming & Barnes, Inc., doing business as Dimondale Adolescent Care Facility, including the hiring date and reasons for her hire;

(2) Lynette Whiting's essential job duties during her employment with Fleming & Barnes, Inc., doing business as Dimondale Adolescent Care Facility;

(3) All information relating to any accommodation granted to Lynette Whiting during her employment with Fleming & Barnes, Inc., doing business as Dimondale Adolescent Care Facility, including remote working; and

(4) All information relating to the termination of Lynette Whiting's employment around October 2022 with Fleming & Barnes, Inc., doing business as Dimondale Adolescent Care Facility, including the date of termination and reasons for the termination.

(Gomez Decl., Ex. K (emphasis added).)

Relevancy
and Admissibility

Plaintiff

argues that the information sought is irrelevant because the information it seeks was acquired after the alleged actions taken by Defendant. Plaintiff also argues that the information sought is inadmissible character evidence.

The

Court is not persuaded by Plaintiff's arguments. Plaintiff has put in question whether, with accommodations, she would have been able to fulfill her job obligations. Plaintiff alleges two causes of action for failure to accommodate and failure to engage in the interactive process. (FAC, ¶¶ 43-45; 48-52.) Moreover, Defendant's subsequent employment allowed Plaintiff to work remotely. Thus, the requested information is relevant to Plaintiff's case.

“[A]ny

party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.)

Plaintiff

argues that pursuant to Evidence Code section 1001, subdivision (a), the information sought by Defendant is inadmissible. However, the standard for discovery is not only admissibility but also whether it “appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.) The information sought is relevant to the inquiry into whether Plaintiff had received accommodations, whether she would have been able to fulfill her job duties, and her alleged damages. (See *Alexander v. Community Hospital of Long Beach* (2020) 46 Cal.App.5th 238, 266.)

Thus, the

Court denies Plaintiff’s motion to quash on the basis of relevancy and inadmissibility.

Privacy

The California Constitution

protects individuals’ right to privacy. (Cal. Const., Art. I, § 1.) “Protection of informational privacy is the provision’s central concern.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 (*Williams*).) “Invasion of a privacy interest is not a violation of the state constitutional right to privacy if the invasion is justified by a competing interest.” (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 38.) A statutory invasion of privacy requires a legally protected privacy interest, a reasonable expectation of privacy, and a serious invasion of that privacy interest. (*Id.* at pp. 35-37.)

Plaintiff

argues that medical and disability information is confidential and protected by privacy. (Mot., 7:11.) Plaintiff relies on *El Dorado Savings & Loan Assn. v. Superior Court* (1987) 190 Cal.App.3d 342, which was overruled in part by *Williams v. Superior Court* (2017) 3 Cal.5th 531. The burden falls on the party

asserting the privacy interest to “establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies, as Hill requires. What suffices to justify an invasion will, . . . , vary according to the context.” (Williams, supra, 3 Cal.5th 531, 557.)

Here,

Plaintiff does not meet that burden. Plaintiff has not provided any support that she has a reasonable expectation of privacy regarding whether accommodations in her subsequent employment allowed her to fulfill her job duties, or the reasons for her termination, to determine the amount of damages. Plaintiff has not established the seriousness of the potential invasion of privacy; she provides only unsupported arguments.

Thus, the

Court denies Plaintiff's motion to quash on the basis of privacy.

The Court notes that Plaintiff makes one more conclusory assertion that categories three and four are overbroad and oppressive, but provides no legal authority to support these assertions. The Court declines to further address these assertions.

Conclusion

Plaintiff

Lynette Whiting's motion to quash is denied.